

24STCV23198 24STCV23198

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-09-23

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Case Number: 24STCV23198 Hearing Date: September 23, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Judgment

Defendants' Motion for Summary Judgment is granted as to BP Ford of Long Beach and denied as to Ford Motor Company. Defendants' alternative Motion for Summary Adjudication is granted as to the first and third causes of action and denied as to the second and fourth causes of action.

BACKGROUND

Plaintiff Ernest N. Ramirez (Plaintiff) filed this action against Ford Motor Company (Ford) and BP Ford of Long Beach (the Dealership) (collectively, "Defendants"), alleging that the new 2022 Ford Maverick he purchased (the Vehicle) developed defects that Ford failed to repair after a reasonable number of attempts and that the Dealership negligently repaired the Vehicle.

The causes of action are: (1) Violation of Civil Code Section 1793.2, Subdivision (d); (2) Violation of Civil Code Section 1793.2, Subdivision (b); (3) Violation of Civil Code Section 1793.2, Subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability, each asserted against Ford; and (5) Negligent Repair, asserted against the Dealership.

Defendants filed a Motion for Summary Judgment or, Alternatively, Summary Adjudication. Plaintiff filed an Opposition.

When Plaintiff served and filed the Opposition on July 6, 2026, the hearing was set for July 17, 2026. The same day, Defendants objected to the Opposition as untimely and asked, in the alternative, for a continuance to file

a reply. On July 17, 2026, the Court granted Defendants' request and continued the hearing. The hearing was later continued to September 23, 2026. In the interim, Defendants filed a Reply, evidentiary objections, and a reply to Plaintiff's additional material facts.

EVIDENTIARY OBJECTIONS

Defendants filed objections to the declaration of Benjamin Fuchs and to Plaintiff's Separate Statement of Additional Undisputed Material Facts. The Court rules on the objections material to its disposition. (Code Civ. Proc., § 437c, subd. (q).)

Fuchs is one of Plaintiff's attorneys and his declaration attaches, as Exhibit 1, excerpts of Plaintiff's January 8, 2026 deposition transcript, and his account of what that testimony shows. The transcript is also before the Court as an exhibit to Defendants' moving papers. (Scott Decl., ¶ 8, Ex. 7.)

Objections 1 through 8. Overruled as to the deposition excerpts and sustained as to Fuchs's descriptions of the testimony. Counsel's declaration establishes that Exhibit 1 is what Plaintiff claims it is. (Evid. Code, § 1400.) The same transcript is part of Defendants' moving papers, and the Court considers all of the evidence set forth in the papers. (Code Civ. Proc., § 437c, subd. (c).) However, Fuchs lacks personal knowledge of the underlying events (Evid. Code, § 702), and a declaration is not the place for a party's argument (In re Marriage of Heggie (2002) 99 Cal.App.4th 28, 30, fn. 3).

Objections 1 through 6 to the Separate Statement of Additional Undisputed Material Facts. Overruled. A separate statement sets forth material facts and refers to the evidence supporting them, and it is not itself evidence. (Code Civ. Proc., § 437c, subd. (b)(1).) The Court has ruled on the objections to the evidence those facts cite.

LEGAL STANDARD

A defendant moving for summary judgment must show that one or more elements of a cause of action cannot be established or that there is a complete defense to it. (Code Civ. Proc., § 437c, subd. (p)(2).) The motion must be granted if the papers show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A defendant meets its initial burden by presenting evidence, and not by arguing that the plaintiff lacks evidence. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854 (Aguilar).) A moving defendant also “may rely on factually devoid discovery responses to shift the burden of proof.” (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.) If the defendant makes that showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2).) In deciding the motion, the Court takes account of the whole evidentiary showing and the inferences reasonably available from it, reading both as favorably to the opposing party as the record permits. (Aguilar, supra, 25 Cal.4th at p. 843.) The Court may not grant the motion on an inference that other inferences or evidence contradict. (Code Civ. Proc., § 437c, subd. (c).)

A motion for summary adjudication proceeds under the same standard and may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

ANALYSIS

I. Express Warranty

Ford contends that Plaintiff cannot establish the presentation and failure to repair elements, because he presented the Vehicle three times before filing suit and the only nonconformity he reported was a steering vibration that was repaired. Plaintiff argues that he presented the Vehicle for repair on several occasions during the warranty period, that the transmission and brake conditions remain unrepaired, and that the presentation element is measured against the Vehicle as a whole rather than against any one nonconformity.

Ford replies that Plaintiff never testified he presented the Vehicle for the transmission or the brakes. Ford further argues that Plaintiff must show he presented the Vehicle for a reasonable number of repair attempts before he filed the Complaint.

“A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the

nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). [Citation.]” (Donlen v. Ford Motor Co. (2013) 217 Cal.App.4th 138, 152, quoting Oregel v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1101 (Oregel).) Because the word “attempts” is plural, the statute “does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208 (Silvio).) The Act requires the consumer to give the manufacturer an opportunity to repair. “Whether or not the manufacturer’s agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible.” (Oregel, supra, 90 Cal.App.4th at pp. 1103-1104.) “The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum there must be more than one opportunity to fix the nonconformity.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 799 (Robertson).)

Ford’s showing shifts the burden. The repair orders and Plaintiff’s deposition testimony show that Plaintiff presented the Vehicle three times before he filed suit, for maintenance in September 2023, for recall work and maintenance on April 19, 2024, and for the steering vibration on July 17, 2024, when the Dealership replaced the front half shafts and resolved the vibration. (Scott Decl., ¶ 4, Ex. 3; ¶ 8, Ex. 7, at pp. 24:21-24, 30:18-21, 34:1-2, 35:10-22, 36:1-13.) At his deposition, Plaintiff also confirmed that after he filed suit, he brought the Vehicle in for an oil change and inspection on November 9, 2024, and for the rearview camera recall and scheduled maintenance on May 13, 2025. (Scott Decl., ¶ 8, Ex. 7, at pp. 38:7-15, 39:1-8, 40:2-10.) He further agreed that the repairs reviewed at his deposition were the only repairs performed on the Vehicle. (Id. at pp. 40:17 - 41:5.)

Here, the evidence supports at most one opportunity to repair the transmission or brake condition. First, Plaintiff answered “Yes” when asked whether he had “ever brought the vehicle in for the problems ... with the transmission or the control of the brakes.” (Scott Decl., ¶ 8, Ex. 7, at p. 26:7-10.) He also identified the transmission as the problem he was experiencing when he brought the Vehicle in on July 17, 2024. (Id. at

p. 34:12-21.) The Court reads that testimony in Plaintiff's favor as supporting an inference that he presented the transmission condition for repair on that visit, although the repair order does not list it. Second, Plaintiff could not recall whether he experienced the transmission hesitation at the April 19, 2024 visit "because it's been several times that I took it in," and the repair order for that visit reflects recall work and maintenance. (Id. at pp. 32:10 - 33:3.) Third, Plaintiff did not tie either condition to the November 9, 2024 or May 13, 2025 visit. (Id. at pp. 38:16-25, 39:1-8, 40:2-10.) Finally, Plaintiff testified that he took the Vehicle in "various times," but he identified no visit beyond those that the repair orders document. (Id. at p. 38:24-25.)

Plaintiff argues that the presentation element is measured against the Vehicle as a whole. However, the failure to repair element requires "more than one opportunity to fix the nonconformity." (Robertson, *supra*, 144 Cal.App.4th at p. 799.) Plaintiff cites no authority counting presentations for different nonconformities together. Moreover, the only other condition that Plaintiff presented before filing suit was the steering vibration. The Dealership resolved that condition on the first attempt. (Scott Decl., ¶ 8, Ex. 7, at p. 36:8-13.)

Accordingly, summary adjudication of the first cause of action is granted.

III. Repair Obligation

Ford contends that no repair visit exceeded 30 days and that the second cause of action therefore fails. Plaintiff argues that the statute requires the Vehicle to be conformed to warranty within 30 days, not that each visit be shorter than that. Ford replies that the statute requires only that repairs be commenced and completed within 30 days, and that Plaintiff never brought the Vehicle in for the transmission or the brakes.

Civil Code section 1793.2, subdivision (b), provides, in relevant part. "Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay."

Here, Ford's reading adds a requirement that the subdivision does not contain. The subdivision directs that the goods "shall be serviced or repaired so as to conform to the applicable warranties within 30 days." It sets no limit on the length of a single visit. Therefore, Ford does not negate the element by showing that no visit lasted longer than 30 days. (Scott Decl., ¶ 4, Ex. 3.)

Ford's reliance on *Schick v. BMW of North America, LLC* (9th Cir. 2020) 801 Fed.Appx. 519, 521 is misplaced. There, in an unpublished memorandum disposition, the Ninth Circuit read the subdivision to require "only that BMW complete any single repair attempt within 30 days." That disposition does not bind this Court. Moreover, the Court of Appeal has expressly left open "whether the 30 days of failure to complete repairs must be 30 consecutive days." (*Ramos v. Mercedes-Benz USA, LLC* (2020) 55 Cal.App.5th 220, 226, fn. 2.) The Court therefore applies the text of the subdivision, which measures Ford's obligation by whether the goods were conformed to the warranties within 30 days.

Plaintiff's testimony raises a triable issue. Plaintiff testified that he brought the Vehicle in for the transmission condition and identified the transmission as the problem he was experiencing when he presented the Vehicle on July 17, 2024. (Scott Decl., ¶ 8, Ex. 7, at pp. 26:7-10, 34:12-21.) The Vehicle was returned to him on July 19, 2024, and he testified that the transmission condition persisted through the date of his deposition. (*Id.* at pp. 25:5-10, 34:1-2.) Thus, a trier of fact could find that Ford did not service or repair the Vehicle so as to conform to the applicable warranties within 30 days. Ford argues that Plaintiff never presented the transmission condition, but as discussed above, Plaintiff's testimony supports an inference that he presented it on July 17, 2024.

Ford separately asks the Court to adjudicate that the replacement and restitution remedy is unavailable on this cause of action. (Mot., at pp. 13:25 - 14:10.) Summary adjudication reaches a cause of action, an affirmative defense, a claim for damages as specified in Civil Code section 3294, or an issue of duty, and is granted only if it completely disposes of one of them. (Code Civ. Proc., § 437c, subd. (f)(1).) Ford seeks a ruling that would leave the second cause of action standing and would dispose of none of them.

Accordingly, summary adjudication of the second cause of action is denied.

IV. Literature and Parts

Ford contends that Plaintiff has no evidence that it failed to make sufficient service literature or replacement parts available to its authorized repair facilities. Plaintiff argues that the three to four month wait for a rearview camera part shows the failure, and that the Vehicle continued to malfunction after the facilities were given repair opportunities. Ford replies that Plaintiff reported the rearview camera after he filed this action, and that a claim must exist when the complaint is filed.

Civil Code section 1793.2, subdivision (a)(3), requires a manufacturer to “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” A plaintiff who “has no cause of action at the time of the institution of his action ... cannot maintain it by filing a supplemental complaint founded upon matters which have subsequently occurred.” (*Wittenbrock v. Bellmer* (1880) 57 Cal. 12, 13.) Plaintiff filed the Complaint on September 9, 2024, and has filed no supplemental complaint. (Scott Decl., ¶ 2, Ex. 1.) Thus, the third cause of action must rest on a failure that existed when Plaintiff filed it.

Ford has met its initial burden. The repair orders for each visit before Plaintiff filed the Complaint reflect completed work, including recall campaigns and the replacement of the front half shafts. None reflects an unavailable part or a missing or inadequate service publication. (Scott Decl., ¶ 4, Ex. 3; ¶ 8, Ex. 7, at pp. 30:18-21, 35:10 - 36:13.)

Here, Plaintiff fails to raise a triable issue. First, the parts shortage that Plaintiff identifies arose after he filed the Complaint. He testified that he called the facility about the rear camera, was told the part was unavailable, and brought the Vehicle in for the camera recall on May 13, 2025, “[p]robably about three or four months” after the call. (Scott Decl., ¶ 8, Ex. 7, at p. 39:1-19.) Second, when Ford’s counsel asked whether “that phone call occurred in the year of 2025,” Plaintiff answered, “Yes.” (*Id.* at p. 42:8-13.) Third, while counsel was reviewing the April 19, 2024 repair order, Plaintiff said that he “called them one time for the camera,” but he gave no date for the call. (*Id.* at pp. 32:15 - 33:7.)

Because Plaintiff testified to a single call and placed it in 2025, the Court cannot reasonably infer that he made the call at the April 19, 2024 visit. (Code Civ. Proc., § 437c, subd. (c).) Therefore, the camera part

shortage does not support a claim that existed when Plaintiff filed the Complaint.

Plaintiff also argues that the facilities were given repair opportunities and the Vehicle continued to malfunction. However, subdivision (a)(3) addresses whether the manufacturer makes literature and parts available, and it does not impose liability because a repair proved unsuccessful. Plaintiff identified no publication or part other than the camera part.

Accordingly, summary adjudication of the third cause of action is granted.

V. Implied Warranty

Ford contends that Plaintiff cannot establish a breach because he did not present the Vehicle for warranty repair within the one-year implied warranty period. Plaintiff argues that the defects were latent in the Vehicle during that period and that a repair visit is not an element of the claim. Ford replies that a latent defect theory requires evidence that the defect existed when the Vehicle was sold.

Every retail sale of consumer goods in this state comes with an implied warranty that the goods are merchantable. (Civ. Code, § 1792.) The warranty does not “impose a general requirement that goods precisely fulfill the expectation of the buyer. Instead, it provides for a minimum level of quality.” (American Suzuki Motor Corp. v. Superior Court (1995) 37 Cal.App.4th 1291, 1296.) The warranty runs coextensively with the express warranty and in no event more than one year following the sale. (Civ. Code, § 1791.1, subd. (c).) A latent defect may breach the warranty, because “a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305 (Mexia).) Nothing in the durational provision “suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period.” (Id. at p. 1310.)

Here, Ford did not meet its initial burden. Ford showed only that Plaintiff first presented the Vehicle for warranty repair in July 2024, more than a year after the November 2022 sale. (Scott Decl., ¶ 3, Ex. 2; ¶ 8, Ex. 7, at p. 34:1-2.) The date of the first warranty visit therefore neither negates a latent defect nor shows that Plaintiff cannot prove one. (Mexia, supra,

174 Cal.App.4th at pp. 1305, 1310.) A defendant moving for summary judgment must present evidence. (Aguilar, supra, 25 Cal.4th at p. 854.) Ford's assertion that Plaintiff has no proof of a latent defect is argument.

Nor did Ford shift the burden through Plaintiff's discovery responses. "If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses." (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 107.) However, Ford served no interrogatory asking Plaintiff to state the facts supporting the implied warranty claim. (Scott Decl., ¶ 5, Ex. 4.) Ford relies instead on the repair orders and on Plaintiff's response to a request for "All DOCUMENTS that YOU believe support YOUR allegations in YOUR COMPLAINT." (Scott Decl., ¶ 4, Ex. 3; ¶ 6, Ex. 5, Resp. to Request for Production No. 3.) A request for documents does not call for facts that Plaintiff may prove through testimony.

Ford's reliance on Simgel Co., Inc. v. Jaguar Land Rover North America, LLC (2020) 55 Cal.App.5th 305, 321 is misplaced. There, after a jury trial, the court upheld an alternative grant of judgment notwithstanding the verdict because no evidence tied a window mechanism that failed two years into the lease to a defect present when the car was manufactured. Here, the burden never shifted. Therefore, Plaintiff was not required to come forward with that proof.

Accordingly, summary adjudication of the fourth cause of action is denied.

VI. Negligent Repair

The Dealership contends that the economic loss rule bars the negligent repair cause of action, the only cause of action Plaintiff asserts against it. Plaintiff did not address the cause of action in the Opposition.

"In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) Between contracting parties, the rule "requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (Robinson

Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.)

Here, the Dealership met its burden, and Plaintiff did not respond. First, Plaintiff and the Dealership are in contractual privity. The Dealership's repair orders for the Vehicle name Plaintiff as the customer. (Scott Decl., ¶ 4, Ex. 3; ¶ 8, Ex. 7, at pp. 29:21 - 30:3, 33:20-24.) Second, Plaintiff incorporates the warranty allegations into the negligent repair cause of action and alleges a duty to use ordinary care in storing, preparing, and repairing the Vehicle. (Scott Decl., ¶ 2, Ex. 1, ¶¶ 45-48.) Finally, in response to form interrogatories directed to physical injury, property damage, lost income, and other damages, Plaintiff identified no personal injury and no damage to property apart from the Vehicle. (Scott Decl., ¶ 7, Ex. 6, Nos. 6.1, 7.1, 8.1, 9.1.) Thus, Plaintiff seeks recovery in tort for disappointed expectations in the Vehicle and identifies no harm beyond the Dealership's broken promise to repair it.

Summary judgment is granted as to the Dealership. Because summary adjudication is denied as to the second and fourth causes of action, summary judgment is denied as to Ford.

CONCLUSION

Defendants' Motion for Summary Judgment is granted as to BP Ford of Long Beach and denied as to Ford Motor Company. Defendants' alternative Motion for Summary Adjudication is granted as to the first and third causes of action and denied as to the second and fourth causes of action.